1.3 Debating States' Rights

When you get together with friends for a movie, you probably disagree sometimes about which one to see. Will it be sci-fi, a romantic comedy, or a thriller? But the real question is: Do you compromise or split up and see different films?

MAIN IDEA Conflicts over tariffs caused tensions—and triggered threats—in different parts of the country.

TROUBLE OVER TAXES

In the early years of Andrew Jackson's presidency, regions of the country were having trouble compromising. In particular, the Northeast and the South disagreed over tariffs, which are taxes a foreign country charges on its imported goods. The Northeast welcomed tariffs. Many northeasterners worked in manufacturing. Tariffs made foreign goods more expensive than those produced in the Northeast, and so increased sales of local goods. But people in the South didn't like tariffs. The South had an **agrarian**, or agricultural, economy. Southerners were mostly farmers who had to buy manufactured goods from other countries. Tariffs increased the cost of these goods.

So southerners were angry when Congress passed a bill in the last months of John Quincy Adams's presidency that greatly increased tariffs. The bill raised the price of foreign products sold in the United States. It also contained a clause that raised taxes on U.S. raw materials sold abroad. The clause hurt the South because it depended on the overseas sale of such raw materials as cotton and tobacco. Taxes made these items more expensive and, as a result, less attractive to foreign buyers.

The Tariff of 1828, as the bill was called, was a win-win for the federal government and the Northeast. Tariffs were the government's main source of revenue, or income. The fees caused foreign countries to charge more for their goods and helped protect northeastern industries. As you may recall, Adams represented the interests of the Northeast. In fact, the Adams-packed Congress passed the bill to appeal to northeastern voters.

Not surprisingly, southerners were outraged. They called the bill the **Tariff of Abominations**. An abomination is something that stirs feelings of disgust or hatred, which is exactly how southerners felt. But the bill backfired on Adams. The South helped vote him out of office partly in reaction to the tariff hike.

STATE VERSUS FEDERAL POWER

Political leaders in South Carolina hated the bill so much, they began to talk about the state's withdrawal from the Union. To prevent the country from breaking apart, South Carolina senator John C. Calhoun applied the **doctrine of nullification**, also called the states' rights doctrine. According to this doctrine, a state could nullify, or reject, a federal law it considered unconstitutional. By promoting the idea that a state could override a federal law, the doctrine opened up the debate over states' rights versus the authority of the federal government.

The issue placed Jackson in a tough position. He supported states' rights, and he had picked Calhoun to be his vice president. But he disagreed with Calhoun's notion that states should be able to prevent the federal government from acting on behalf of the nation as a whole.

Soon, other politicians joined in. Most famously, two senators took part in the **Webster-Hayne debate** in 1830. **Daniel Webster** from Massachusetts argued against nullification, claiming that it threatened the Union and freedom.

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In this painting by George P.A. Healy, *Webster's Reply to Hayne*, Daniel Webster stands and delivers his speech in the Senate. Hayne sits to Webster's right with his hands held in front of him.

In a passionate plea, he called for "Liberty and Union, now and forever, one and inseparable!" Robert Y. Hayne from South Carolina made the case for nullification. He claimed that a state had the right to nullify a federal law, and he criticized those who, as he said, "are constantly stealing power from the States and adding strength to the Federal Government."

To ease the situation, Jackson and Congress agreed to reduce the tariff in 1832, but South Carolina's representatives still thought it was too high. They rejected the tariff in 1828 and 1832. The state's representatives even threatened **secession**, or withdrawal from the country, if the federal government tried to force it to pay the tariffs. Jackson responded by warning the representatives that he would consider secession an act of **treason**, or disloyalty to one's country. And Congress authorized Jackson to use force to collect tariffs.

The crisis finally ended in 1833 when Congress passed yet another bill that gradually reduced tariffs. However, tensions between the North and the South did not go away. On the contrary, tensions would continue to escalate throughout the first half of the 1800s.

But, meanwhile, another crisis was brewing. Americans' demand for more land in the West was driving Native American populations from their homes. Jackson answered with a new set of policies toward Native Americans.

HISTORICAL THINKING

1. **READING CHECK** How did the doctrine of nullification help assert states' rights?
2. **ANALYZE CAUSE AND EFFECT** How did the Tariff of 1828 affect the agrarian economy in the South?
3. **FORM AND SUPPORT OPINIONS** Do you think states should have the right to nullify a federal law? Explain your answer.

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